

Multiple Choice

1. **Answer: C**

Options: A) There are fundamental differences between individual women.'; B) Men and women have different conceptions of the feminist project.'; C) Women look to context, whereas men appeal to neutral, abstract notions of justice.'; D) Men are unable to comprehend their differences from women.'

Note: The correct answer highlights the fundamental difference in perspectives between women and men in difference feminism, emphasizing that women prioritize contextual and relational understanding of justice, while men tend to favor objective, abstract principles.

2. **Answer: C**

Options: A) Parties to a treaty should be cognizant of its terms and not misinterpret them; B) Parties to a treaty should safeguard the object and purpose of the treaty; C) Parties to a treaty should adhere to its terms in good faith; D) Parties to a treaty should not violate the most important provisions of the treaty

Note: The principle 'pacta sunt servanda' is a fundamental tenet of international law that emphasizes the obligation of parties to a treaty to fulfill their commitments in good faith, thereby ensuring the stability and reliability of legal agreements.

3. **Answer: B**

Options: A) It is a sin for humans not to apply reason.; B) The principles of natural law are discoverable by reason.; C) Natural law does not apply without good reason.; D) The law of nature is the basis of all positive law.

Note: The correct answer emphasizes that Cicero's conception of natural law relies on the belief that human reason can uncover universal moral principles inherent in nature, thus making these principles accessible and understandable to all individuals.

4. **Answer: A**

Options: A) Article 3; B) Article 8; C) Article 9; D) Article 11

Note: Article 3 of the European Convention on Human Rights, which prohibits torture and inhuman or degrading treatment, is considered an absolute right and thus is not subject to any limitations or qualifications, distinguishing it from qualified rights that can be restricted under certain circumstances.

5. **Answer: C**

Options: A) Treaties should always be designated as such and assume a particular form; B) Treaties should always assume a particular form, no matter how they are designated; C) Treaties do not have to assume a particular form or designated as such; D) Treaties have to be designated as such, no matter what form they assume

Note: Treaties are not required to follow a specific form or designation, as their validity

and enforceability depend on the mutual consent of the parties involved rather than formalities.

True / False

6. **Answer:** False

Options: A) True; B) False

Note: Dworkin argues that morality is integral to the concept of law, asserting that legal principles must be interpreted in light of ethical considerations and moral reasoning.

7. **Answer:** False

Options: A) True; B) False

Note: General Assembly Resolutions are not legally binding and therefore do not constitute formal sources of international law like treaties and customary law, which are recognized as binding obligations for states.

8. **Answer:** False

Options: A) True; B) False

Note: The statement is false because jurisprudence is more accurately associated with scholars like H.L.A. Hart and not solely defined by Austin, who emphasized the command theory of law rather than a comprehensive study of legal principles and their applications.

9. **Answer:** True

Options: A) True; B) False

Note: The Critical Legal Studies School contends that legal rules are not neutral but rather reflect and perpetuate the values and interests of dominant social groups, thereby reinforcing existing power structures and societal inequalities.

10. **Answer:** False

Options: A) True; B) False

Note: The statement is false because legal validity does not necessarily depend on moral principles, as laws can exist and be enforced even if they conflict with societal morals or ethical standards.

Long Form Response

11. **Answer:** Hart's distinction between 'being obliged' and 'having an obligation' is crucial for understanding legal rules in constitutional law as it clarifies the nature of legal duties. 'Being obliged' refers to the external pressures or consequences that compel individuals to act in a certain way, often influenced by social or legal sanctions. In contrast, 'having an obligation' reflects a deeper, internalized understanding of a legal rule, where individuals recognize their duty based on established legal norms. This distinction helps us see that constitutional rules are not merely coercive mandates but

are also grounded in a shared understanding of rights and responsibilities within a legal framework. Thus, it emphasizes the importance of both the normative and the practical dimensions of legal rules in shaping governance and citizen behavior.

Note: correct because it effectively differentiates between the external enforcement of legal duties ('being obliged') and the internal recognition of legal responsibilities ('having an obligation'), thereby enhancing our comprehension of how legal rules function and are perceived within constitutional law.

12. **Answer:** The revival of natural law in the 20 th century can be attributed to several interrelated factors, notably the recognition of international human rights following World War II. The atrocities committed during the war prompted a global reassessment of moral and legal standards, leading to the establishment of documents such as the Universal Declaration of Human Rights in 1948. This recognition emphasized inherent human dignity and rights that transcend national laws, aligning closely with natural law principles that advocate for universal moral norms. Additionally, the emergence of international human rights law provided a framework that reinforced the idea that certain rights are inalienable and rooted in human nature, thus revitalizing natural law discourse in legal and philosophical circles. Consequently, the post-war human rights movement not only reaffirmed the relevance of natural law but also integrated it into contemporary legal frameworks.

Note: correct because it identifies the post-World War II recognition of international human rights as a crucial factor in the revival of natural law, emphasizing the universal principles of inherent human dignity and rights that transcend national legal systems.